

Spotted Owl Seen at Dundee, Oregon.—On the late afternoon of January 16, 1937, I observed a Northern Spotted Owl (*Strix occidentalis caurina*) in the Red Hills of Dundee, Yamhill County, Oregon, and I heard another. The owl was an adult. Jewett and Gabrielson mention this species in Pacific Coast Avifauna No. 19 (1929, p. 22) as rarely seen in Western Oregon.—HENRY W. DECKER, Dundee, Oregon, January 31, 1937.

White-tailed Kites Observed in Yolo County, California.—A pair of White-tailed Kites (*Elanus leucurus*) has been observed upon several occasions on Merritt Island, along the Sacramento River in the southeastern corner of Yolo County. For the past ten or more years these birds have lived as permanent residents in and near a small group of white oak trees standing in the open alfalfa fields away from the wooded bank of the river. No young birds of the species have ever been identified positively, but two large nests may be observed in the largest oak tree. Earlier in the season a young hawk was seen which I tentatively identified as an immature kite.—ALICE QUICK, Berkeley, California, February 26, 1937.

The Rocky Mountain Pigmy Owl in Montana.—On the morning of February 11, 1937, near the campus of the State University of Montana, I saw a peculiar bird fly into a clump of firs, which upon investigation proved to be not one but two birds, one alive, the other dead. The living one was a Rocky Mountain Pigmy Owl (*Glaucidium gnoma pinicola*). Clutched in its talons was a Junco, probably Shufeldt Junco (*Junco oreganus shufeldti*). All attempts to make the owl drop its prey were unsuccessful. In looking up the food habits of this owl, I found references to its feeding on sparrows, quail, insects, and mice but no reference to the Junco. Consequently, I assume this to be a new record or at least an unusual instance of the feeding habits of this bird.—G. B. CASTLE, Missoula, Montana, February 25, 1937.

The Marbled Godwit and Sanderling in New Mexico.—The following observations were made at White Sands National Monument, Otero County, New Mexico. On the eastern side of the Sands there is a small lake and marsh which recently has been acquired as an extension to the Monument.

Here on April 26, 1936, I observed two Marbled Godwits; they were extremely wary, and I was unable to approach closer than two hundred yards. They remained segregated from other shore birds, and they flew to some distant open shore of the lake each time they were disturbed. On July 11, I again visited the marsh and observed one of these birds, which I was able to collect. It proved to be a male Marbled Godwit (*Limosa fedoa*) in extremely worn plumage. There appears to be no former record of this species in the State of New Mexico.

On September 19, 1936, at White Sands National Monument, I collected a female Sanderling (*Crocethia alba*) in fresh fall plumage. The bird was alone, and it was feeding on a small mud flat at the edge of the lake. This constitutes the first verifiable record of this species in New Mexico, and it is the only record since the sight observation made in September of 1853 or 1854 by Dr. T. Charlton Henry (Proc. Acad. Nat. Sci. Phila., vol. 7, 1854-55, p. 315). He saw a few near Fort Thorn, which was located on the Rio Grande, ten miles west of Rincon, Dona Ana County, New Mexico.

The skins of these two birds have been placed in the Museum of Vertebrate Zoology at Berkeley, California, and bear numbers 70609 and 70610, respectively.—A. E. BORELL, Wildlife Division, National Park Service, Santa Fe, New Mexico, January 3, 1937.

Five Species New to Colorado.—We wish to record the following specimens, in the collection of the Colorado Museum of Natural History, representing five species which we believe to be new to the State list.

Water-turkey (*Anhinga anhinga*). Adult, C.M.N.H., no. 12296, September, 1927; Adams County, Colorado; collected by Jacob Muzik. Adult male, no. 12297, September 24, 1931; Adams County, Colorado; collected by A. Viraldo.

Glaucous-winged Gull (*Larus glaucescens*). Immature, no. 880, November 3, 1912; Weld County, Colorado; collected by T. Johnson. This specimen had been identified as *Larus argentatus*. We submitted it to Dr. Harry C. Oberholser for identification, and he stated that this is apparently the easternmost occurrence for *glaucescens*.

Russet-backed Thrush (*Hylocichla ustulata ustulata*). Female, no. 14631, September 22, 1934; Denver County, Colorado; collected by H. H. Nininger. Found dead in City Park, near the Museum. The identification was verified by Oberholser.

Cerulean Warbler (*Dendroica cerulea*). Adult female, no. 15073, September 2, 1936; Douglas County, Colorado; collected by Bailey and Niedrach. Henshaw saw a Cerulean Warbler near Denver on May 17, 1883, and the species has been recorded in the literature subsequently on the

basis of this sight record. Apparently our specimen is the only one actually taken in the State. It was high in the cottonwoods along Cherry Creek, in company of many Audubon Warblers.

Chestnut-sided Warbler (*Dendroica pensylvanica*). Adult male, no. 12314, May 16, 1933; Adams County, Colorado; collected by Niedrach. H. G. Smith reported observing a Chestnut-sided Warbler in a little tree claim near Barr, Colorado, on May 13, and three days later Niedrach was fortunate enough to find the bird in the same locality.—ALFRED M. BAILEY and ROBERT J. NIEDRACH, *Colorado Museum of Natural History, Denver, Colorado, February 26, 1937.*

Notes on Eggs of the California Jay.—While collecting eggs of the Nicasio California Jay (*Aphelocoma californica oocleptica*) near Benicia, Solano County, California, in the spring of 1936, I was surprised to find sets running large in number of eggs. During my nineteen years in Benicia, it has been my experience that a set of six eggs might be located either once a season or once in two seasons. However, in the spring of 1936, nine sets of six eggs and one set of seven eggs of this Jay were taken here.

The set of seven is the first I have seen. The nest containing this large set was in a small live oak on a steep hillside six miles northeast of Benicia along the state highway, and it was constructed of sticks and weed-stems and lined with soap root. The eggs of this set are uniform in size, pattern of coloration, and incubation. Wilson C. Hanna also records a set of seven eggs of this species (*Condor*, vol. 38, 1936, p. 39).

In the vicinity of Benicia, the ratio of sets of the "red" type to sets of the "green" type is about one to four. I have taken some beautiful specimens of the former type. All of the twenty-one sets of six, and one set of seven, which I have recorded as having been taken here, are of the "green" type. This surely is not a coincidence; it seems to indicate that the Jays, in the aggregate, which lay the "red" eggs are less prolific, therefore possibly of somewhat less strong vitality, than those producing the "green" type.—EMERSON A. STONER, *Benicia, California, September 7, 1936.*

NOTES AND NEWS

The twelfth annual meeting of the Cooper Ornithological Club, held in Berkeley April 16 to 18, was largely attended and was marked by several features of memorable interest. The dinners, luncheons and field-trip afforded favorable opportunities for personal association; and the four half-day sessions provided a program of 28 papers presented by 26 individuals. A full report of this meeting is on our docket for printing in July *Condor*, from the pen of Laura B. Law, Secretary of the Board of Governors.—J.G.

There may prove to be great importance in taking and keeping photographs of unusual birds that are banded and released. It is a rule with many compilers of regional lists, to exclude records of rare species that are not backed by "specimens preserved." Well nigh as convincing "evidence" as the study-skin is afforded by a photograph, especially when so taken as to show the diagnostic characters of the species. Even the subspecies can sometimes be told from a good photograph. Future doubt as to correctness of identification can thereby be met convincingly. See, for example, in the last issue of the *Condor* (p. 86), Miss Frances Carter's record of the White-winged Dove at Twenty-nine Palms, accompanied by a picture of the bird banded and about to be released.—J.G.

Part X of the "Catalogue of Birds of the Americas" by Hellmayr was issued in the past month; it covers the Family Icteridae. This sec-

tion is consistent in style and treatment with other parts of this useful synopsis of the systematics of New World birds. A note by the editor of the series, Wilfred H. Osgood, indicates an early appearance of an additional part to include the Fringillidae.—A.H.M.

The *Journal of Minnesota Ornithology* is the title of a new publication devoted to the recording of facts about the bird-life of one single state. The editor is Mr. John J. Cochrane, of St. Cloud, Minnesota; volume I, number 1 (dated April, 1936), is excellently printed, typographically clean—bespeaking careful editorial attention. Most appropriately, this first issue is dedicated to Dr. Thomas S. Roberts, so long and favorably known for the thoroughness and extent of his work on Minnesota birds; indeed, the organization which sponsors the publication is "The T. S. Roberts Ornithology Club."—J.G.

The objectives of the Migratory Bird Treaty with Mexico concluded in February of 1936 are of the best sort and the effort in the direction of conservation which they represent is to be commended. We do not pretend to know the complexities of the negotiations responsible for the list of species considered to be migratory by the parties to the treaty. But the list as approved does contain distinct surprises. Can a bird be made migratory merely by declaration? We find in the circular recently supplied to collectors by the Biological Survey such permanently resident forms as the Clapper Rail, Black-tailed Gnat-